GARMIN
1200 East 151 Street
Olathe, Kansas 66062
P: 913-440-1280

AFFIDAVIT – Compliance with Garmin Connect Developer Program Requirements

I, (the "**Affiant**"), being first duly sworn, state as follows:

1. I am an authorized representative of a licensee participating in the Garmin Connect Developer Program (the "**Licensee**"), subject to the Garmin Connect Developer Program Agreement (the "**Agreement**") and I have authority to execute this Affidavit on the Licensee's behalf.

2. The Licensee is responsible for protecting its License Key (this and other capitalized terms being defined by the Agreement) and maintaining the confidentiality of End User Data.

3. The Licensee's License Key, once issued to Licensee, will not be, shared with, transferred to, disclosed to, or used by any external third party.

4. The Licensee will receive End User Data from Garmin only through an endpoint that is owned or controlled by the Licensee and approved for the licensed application. The Licensee will not direct or permit Garmin to deliver API data directly to an external third-party endpoint.

5. The Licensee will maintain as confidential all Garmin Connect Developer Program information, documentation, technical materials, credentials, commercial information, and related communications, and will not share or disclose those materials to any third party without Garmin's prior written approval.

6. The Licensee remains responsible for the security and use of its License Key and other credentials and for ensuring that its integration complies with the Agreement and any applicable supplement.

7. The Licensee has disclosed, or will disclose, any contractor, hosting provider, technology vendor, or other service provider used in connection with the integration.

8. I understand that failure to comply with these requirements may result in immediate suspension or termination of the Agreement and Licensee's access to the Garmin Connect Developer Program and its related APIs.

By accepting the Agreement, I declare that the foregoing statements are true and correct to the best of my knowledge and belief.

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GARMIN CONNECT DEVELOPER PROGRAM AGREEMENT

This GARMIN CONNECT DEVELOPER PROGRAM AGREEMENT (this "Agreement"), effective as of the date of your acceptance of this Agreement (the "Effective Date"), is a binding agreement between Garmin International, Inc. and its affiliates (collectively, "Garmin") and you or, if you are entering into this Agreement on behalf of a corporation, governmental organization, or other legal entity, then the corporation, governmental organization, or other legal entity you represent ("Licensee"). As used herein, Garmin and Licensee are each referred to as a "Party" and collectively as the "Parties." By accepting this Agreement, you affirm that you are authorized to bind Licensee and confirm that you have read and agree to all terms set forth in this Agreement.

GARMIN PROVIDES THE API AND GARMIN BRAND FEATURES (EACH AS DEFINED BELOW) SOLELY ON THE TERMS AND CONDITIONS SET FORTH IN THIS AGREEMENT AND ON THE CONDITION THAT LICENSEE ACCEPTS AND COMPLIES WITH THEM. BY CHECKING THE "I AGREE TO ALL OF THE ABOVE TERMS & CONDITIONS" BOX AND CLICKING "ACCEPT" BELOW, YOU (A) ACCEPT THIS AGREEMENT AND AGREE THAT LICENSEE IS LEGALLY BOUND BY ITS TERMS; AND (B) REPRESENT AND WARRANT THAT (I) YOU ARE OF LEGAL AGE TO ENTER INTO A BINDING AGREEMENT; AND (II) IF LICENSEE IS A CORPORATION, GOVERNMENTAL ORGANIZATION, OR OTHER LEGAL ENTITY, YOU HAVE THE RIGHT, POWER, AND AUTHORITY TO ENTER INTO THIS AGREEMENT ON BEHALF OF LICENSEE AND BIND LICENSEE TO ITS TERMS. IF LICENSEE DOES NOT AGREE TO THE TERMS OF THIS AGREEMENT, GARMIN WILL NOT AND DOES NOT LICENSE THE API OR GARMIN BRAND FEATURES TO LICENSEE, AND YOU MUST NOT DOWNLOAD OR USE THE API, ANY DELIVERABLES (AS DEFINED BELOW), OR ANY GARMIN BRAND FEATURE.

THIS AGREEMENT CONTAINS PROVISIONS THAT LIMIT GARMIN'S LIABILITY.

Important: Terms relating to use of Artificial Intelligence (AI) are addressed in Section 15.11, below.

1. PURPOSE

This Agreement sets forth the terms and conditions concerning Licensee's use of (a) the Garmin Connect Developer Program and data shared through Garmin Connect and/or other Garmin web services (through any API or otherwise), in each case, for development of Licensee Applications and End User use thereof and/or (b) the Garmin Connect Developer Program to enable End Users to upload End User Data to their Garmin Connect accounts via Licensee Applications.

2. DEFINITIONS

"Activity API" means the Garmin Connect Activity Application Programming Interface, including any Updates thereto and any accompanying Deliverables.

"Additional Terms" means any terms and conditions agreed to between Garmin and/or the End User, on one hand, and the originator of the End User Data, on the other hand, including the license of any intellectual property rights of the originator of the End User Data.

"API" or "Garmin Connect Developer Program" means one of the following, as applicable: Activity API; Courses API; Health API; Training API; Women's Health API; any other API relating to Garmin Connect made available by Garmin but not licensed under a different agreement; or any combination thereof.

"Applicable Data Protection Laws" means any data protection or privacy law, rule, or regulation that applies to a Party's Processing of End User Personal Data.

"Application Requirements" means this Agreement, the Deliverables, and any additional guidelines that Garmin may post on a Garmin developer website or otherwise provide to Licensee from time to time.

"Courses API" means the Garmin Connect Courses Application Programming Interface, including any Updates thereto and any accompanying Deliverables.

"Deliverables" means the executable code of the API, supporting documentation, License Key, text, software, and any other materials associated with the API as may be provided by Garmin.

"End User" means a person who uses Licensee Applications.

"End User Data" means all data created by, or otherwise related to, an End User, including training data (including plans, courses, and workouts), uploaded to, downloaded from, or otherwise transferred to or from such End User's Garmin Connect account, including all data uploaded, directly or via Licensee Applications, to such End User's Garmin Connect account. Unless otherwise specified, all references to "data" in this Agreement are intended to include End User Data.

"Garmin Device Sourced Data" means any data, content, End User Data, or information accessed, retrieved, received, transmitted, or otherwise made available via the API or Garmin Connect Developer Program.

"Health API" means the Garmin Connect Health Application Programming Interface, including any Updates thereto and any accompanying Deliverables.

"License Key" means a unique electronic key that is assigned to Licensee and associated with the URL of Licensee's website.

"Licensee Applications" means the websites, software applications, services, or products developed, implemented, or distributed by Licensee, and owned by Licensee, that interact with the API and/or interface with Garmin Connect and/or other Garmin web services.

"Licensee Data" means (i) End User Data or other data or content transferred to Garmin through the Licensee Applications; and (ii) any other data or content otherwise transferred by Licensee to Garmin.

"Minimum Security Requirements" means any current or future security requirements defined by Garmin related to the API, Garmin Connect services, and/or other Garmin web services, as specified in this Agreement, Application Requirements, Deliverables, or any other documentation provided or communicated by Garmin to Licensee.

"Personal Data" means any information relating to an identified or identifiable natural person; an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person. Personal Data includes information relating to the End User, such as number of steps walked, calories burned, distance traveled, total activity time throughout the day, and any other metrics obtained, and includes information derived from these or other data.

"Personal Data Breach" means a breach of security leading to the accidental or unlawful destruction, loss, alteration, or unauthorized disclosure of, or access to, Personal Data transmitted, stored, or otherwise subjected to Processing.

"Process" or "Processing" means any operation or set of operations which is performed on Personal Data or on sets of Personal Data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination, or otherwise making available, alignment or combination, restriction, erasure, or destruction.

"Standard Contractual Clauses" mean the standard contractual clauses, module one (controller to controller), adopted by the European Commission by its Implementing Decision (EU) 2021/914 of 04 June 2021.

"Training API" means the Garmin Connect Training Application Programming Interface, including any Updates thereto and any accompanying Deliverables.

"Women's Health API" means the Garmin Connect Women's Health Application Programming Interface, including any Updates thereto and any accompanying Deliverables.

3. SUPPORT AND UPDATES

3.1. Under this Agreement, Garmin has no obligation to provide Licensee or its End Users with support, software upgrades, enhancements, or modifications to the API. Licensee understands and agrees that it is solely responsible for providing End User support and any other technical assistance for the Licensee Applications. Garmin may redirect End Users and potential End Users of the Licensee Applications to the email address on Licensee's account for purposes of answering general application inquiries and support questions. Notwithstanding the foregoing, Licensee acknowledges that Garmin may update or modify the API from time to time and in Garmin's sole discretion (in each instance, an "Update") and may require Licensee to obtain and use the most recent version of the API. Updates may adversely affect how Licensee Applications communicate with the Garmin Connect services or any

other Garmin web services. Licensee is required to make any changes to Licensee Applications that are required for integration as a result of such Update at Licensee's sole cost and expense. Licensee's continued use of the API or Garmin Brand Features following an Update constitutes binding acceptance by Licensee of the Update.

4. LICENSE GRANTS AND OWNERSHIP

4.1. Subject to and conditioned upon Licensee's strict compliance with the terms and conditions set forth in this Agreement, Garmin grants Licensee a limited, non-exclusive, non-transferrable, revocable, and non-sublicensable license during the term of this Agreement to: (a) embed the API and underlying content into Licensee Applications solely so that Licensee Applications can interface directly with Garmin Connect and/or other Garmin web services; and (b) use data transmitted through the API (i) only to the extent necessary to format, display, and use such data in Licensee Applications, and (iii) only as allowed by law and in compliance with each End User's consent. Licensee acknowledges that there are no implied licenses granted under this Agreement. Garmin reserves the right to suspend access to any API provided under this Agreement if Garmin reasonably believes that Licensee is redirecting Garmin Device Sourced Data to a third-party application, website, or endpoint.

4.2. Garmin reserves the right, but is not obligated, to require Licensee to submit the Licensee Application for review by Garmin prior to implementation or publication of the Licensee Application. Garmin may approve or decline the Licensee Application in its sole discretion. In addition to the foregoing, Garmin may, in its sole discretion and at any time, determine that the Licensee Application does not meet all or any part of the Application Requirements or rescind or suspend any License Key, even if the Licensee Application meets the Application Requirements. If Garmin declines a Licensee Application or determines that a Licensee Application does not meet all or any part of the Application Requirements, then Licensee agrees that it will not implement, publish, or otherwise allow any End User to use or access such Licensee Application, unless and until Licensee receives Garmin's express written approval. None of Garmin's review, testing, or approval of the Licensee Application limits or relieves Licensee of any responsibilities related to the Licensee Application or limits Garmin's rights and remedies under this Agreement.

4.3. Licensee acknowledges and agrees that the API and Garmin Brand Features are owned or licensed by Garmin and are licensed, not sold, to Licensee on the terms and conditions set forth in this Agreement. Licensee does not acquire any ownership interest in the API or Garmin Brand Features under this Agreement or any other rights thereto other than in accordance with the rights granted herein and subject to all terms, conditions, and restrictions under this Agreement. Garmin and/or its licensors reserve and shall retain their entire right, title, and interest in and to the API and Garmin Brand Features, including all copyrights, trademarks, and other intellectual property rights therein or relating thereto, except as expressly granted to Licensee in this Agreement. This Agreement defines Licensee's legal use of the Garmin Brand Features and the API, including all Updates, revisions, substitutions, and any copies of the API made by or for Licensee. All rights not expressly granted to Licensee are reserved by Garmin.

4.4. Licensee will use commercially reasonable efforts to safeguard the API and Garmin Brand Features (in each case, including all copies thereof) from infringement, misappropriation, theft, misuse, or unauthorized access. Licensee will promptly notify Garmin in writing if Licensee becomes aware of any infringement or other violation of any intellectual property rights in the API or Garmin Brand Features and will fully cooperate with Garmin, at Garmin's expense, in any legal action taken by Garmin to enforce Garmin's intellectual property rights.

4.5. All Licensee Applications that transfer End User Data to Garmin, including to Garmin Connect, must (a) present each End User with accurate, complete, and conspicuous notice that the End User Data will be transferred to Garmin, including a link to the Garmin Connect privacy notice (https://www.garmin.com/privacy/connect), (b) obtain each End User express consent to transfer the End User Data to Garmin, and (c) inform each End User that the End User must not upload the End User Data to the End User's Garmin Connect account if the End User is restricted from doing so.

4.6. Licensee agrees that Garmin shall be free to copy, modify, create derivative works of, publicly display, disclose, distribute, license, sublicense, incorporate, and otherwise use all Licensee Data, including all derivative works thereto, for any and all purposes, commercial or otherwise, with no obligation of any kind to Licensee, including any obligation to remove such transferred Licensee Data from Garmin's servers, products, or applications or compensate Licensee or any End User. Licensee agrees that it is not Garmin's responsibility to take any steps to protect any Licensee or End User intellectual property rights, including copyrights in any Licensee Data and other content that is transferred to Garmin by Licensee or End Users through the Licensee Applications.

4.7. Licensee and its employees, contractors, and agents may voluntarily provide Garmin with feedback or comments related to the API and/or Garmin Brand Features and/or otherwise related to this Agreement ("Feedback"). Licensee hereby assigns, and will cause its employees, contractors, and agents to assign, to Garmin all right, title, and interest in any ideas, know-how, concepts, techniques, or other intellectual property rights contained in the Feedback, for any purpose whatsoever and without any attribution or compensation to Licensee or any third party. Licensee agrees that Garmin shall be free to copy, modify, create derivative works of, publicly display, disclose, distribute, license, sublicense, incorporate, and otherwise use Feedback, including all derivative works thereof, for any and all purposes, commercial or otherwise, with no obligation of any kind to Licensee or any third party. For the avoidance of doubt, Garmin will not be required to use any Feedback.

5. LICENSEE'S DUTIES AND RESTRICTIONS

5.1. Licensee shall:

a. follow all Application Requirements, including all upload and user experience guidelines and instructions, and such other documentation as provided and/or updated by Garmin from time to time;
b. ensure that the fundamental meaning of the API content is not changed or distorted;
c. ensure that the use or display of API content does not suggest that Garmin promotes or endorses Licensee or any third party or the causes, ideas, websites, products, or services of Licensee or any third party;
d. only use the API for the purposes and in the manner expressly permitted by this Agreement;
e. use the API and undertake Processing the data transmitted through the API in accordance with all applicable laws and regulations and in a manner consistent with any End Users' consent;
f. maintain a security program that includes policies and procedures to safeguard data and systems that are no less rigorous than accepted industry practices, including employing security controls to proactively and regularly defend, identify weaknesses, and identify attacks against systems or data that interface with Garmin and that at all times meet or exceed the Minimum Security Requirements;
g. notify Garmin (by emailing security@garmin.com and by calling +1 913.440.3500) within twenty-four (24) hours of identifying security weaknesses that, if exploited, threaten the confidentiality, integrity, or availability of Garmin systems or data;
h. notify Garmin (by emailing security@garmin.com and by calling +1 913.440.3500) within twenty-four (24) hours of any confirmed systems breach, data breach, Personal Data Breach, or major security incident against systems or data that interface with Garmin;
i. comply with all applicable laws, regulations, and policies, including but not limited to all U.S. Food and Drug Administration ("FDA") laws, regulations, and policies, related to the manufacturing, marketing, sale, and distribution of Licensee Applications in the United States, as well as in other jurisdictions where any Licensee Application is available, manufactured, marketed, sold, distributed or used;
j. only market a Licensee Application for such Licensee Application's cleared or approved intended use/indication for use, and only in strict compliance with applicable law and regulatory requirements;
k. ensure and be responsible for its employees' and contractors' compliance with all terms set forth in this Agreement, including all obligations set forth in Section 15 below;
l. exercise reasonable efforts to stay informed regarding new Garmin products and features that are compatible with the API used by the Licensee Application;
m. only use the API in connection with the Licensee Application identified in Licensee's application and approved by Garmin. Licensee shall not use the API in connection with any additional application, service, or product, or for any materially different functionality or use case; and
n. provide Garmin with prompt written notice of any material change to a Licensee Application or Licensee's use of the API, including but not limited to any change to the Licensee Application's infrastructure that may result in a third-party having access to Garmin Device Sourced Data.

5.2. Licensee shall not:

a. modify or edit any content, headlines, links, or metadata included in the API content when presenting it on a Licensee Application;
b. display the name, logo, trademark, or other identifier of another person (other than Garmin, in accordance with this Agreement) on any Licensee Application, Licensee's website, and/or any third party application and/or website, in each case, in such a manner as to give the viewer the impression that such other person is a publisher or distributor of the API content on such Licensee Application;
c. use the API or the Garmin Brand Features in any manner or for any purpose that violates any law or regulation, any right of Garmin or any other person or entity, including intellectual property rights, rights of privacy, or rights of personality, or in any manner inconsistent with this Agreement;
d. use the API to operate any application where human life may be at stake. Licensee understands that the API is not designed for such purposes and that Licensee's failure in such cases could lead to death or personal injury for which Garmin is not responsible;

e. sell, lease, share, transfer, or sublicense the License Key, provide access to the API to any third party or derive income from the provision of the API;
f. use the API in a manner that exceeds reasonable request volume, constitutes excessive or abusive usage, or otherwise fails to comply or is inconsistent with any part of the applicable Deliverables, as determined by Garmin in its sole discretion;
g. mislead or confuse End Users as to the features, functionality, origin, capabilities, or other aspects of the Licensee Application or the API;
h. interfere with, override, or disable any notices, settings, alerts, warnings, features, or functionality of the API, including any mechanisms used to restrict or control the Garmin Connect services or any other Garmin web services;
i. translate, reverse engineer, decompile, disassemble, or otherwise attempt to derive or gain access to source code, underlying ideas, algorithms, structure, organizational form, or other software component of the API;
j. use the API to design a client or application that uses any robot, spider, site search, or other retrieval application or device to scrape, retrieve, or index services provided by Garmin or its licensors, or to collect information about End Users for any unauthorized purpose;
k. use, deliver, transfer, or otherwise allow any spyware, adware, or other malicious software, data, or hardware;
l. copy the API, except as expressly permitted by this Agreement;
m. modify, translate, adapt, or otherwise create derivative works or improvements, whether or not patentable, to the API;
n. remove, delete, alter, or obscure any trademarks or any copyright, trademark, patent, or other intellectual property or proprietary rights notices from the API or any other material provided by Garmin, including any copy thereof;
o. rent, lease, lend, sell, sublicense, assign, distribute, publish, transfer, or otherwise make available, directly or indirectly, the API or any features or functionality of the API to any third party for any reason, including without limitation by making the API available on a network where it is capable of being accessed by more than one device at any time or developing a Licensee application programming interface to provide End User Data to third-party websites, software applications, platforms, services, or products that have not been approved by Garmin in writing;
p. remove, disable, circumvent, or otherwise create or implement any workaround to any copy protection, rights management, or security features in or protecting the API, Garmin Connect services, and/or any other Garmin web services;
q. combine or integrate the API with any software, technology, services, or materials, unless authorized (i) herein or (ii) by Garmin in writing;
r. attempt to cloak or conceal Licensee's identity or the identity of the Licensee Applications when requesting authorization to use the API;
s. violate, misappropriate, or infringe any copyright, patent, trademark, trade secret, rights of privacy and publicity, or other proprietary, contract, or legal right of any third party or of Garmin;
t. use the API or any Garmin Brand Feature to compete with Garmin, including displaying any advertising of products or applications that compete with Garmin's products or applications on any part of Licensee Applications;
u. use the API in connection with or to promote any products, services, or materials that constitute, promote, or are used primarily for the purpose of dealing in: (i) counterfeit goods; (ii) items subject to U.S. embargo; (iii) unsolicited mass distribution of email (i.e., spam); (iv) multi-level marketing proposals; (v) hate speech or materials; (vi) hacking, surveillance, interception, or descrambling equipment; (vii) libelous, defamatory, obscene, pornographic, abusive, or otherwise offensive content; (viii) stolen products; and (ix) items used for theft, hazardous materials, or any illegal activities; or
v. use the API in connection with AI in a manner prohibited by Section 15.11.

5.3. Licensee agrees to monitor the use of Licensee Applications for any activity that violates applicable laws, rules, regulations, or orders or any terms and conditions of this Agreement, including any fraudulent, inappropriate, or potentially harmful behavior, and promptly restrict any offending End User(s) from further use of Licensee Applications. Licensee agrees to provide a resource for End Users to report abuse of Licensee Applications. As between Garmin and Licensee, Licensee is responsible for all acts and omissions of End Users in connection with Licensee Applications or otherwise under this Agreement. Licensee agrees that it is solely responsible for posting any privacy notices and obtaining any consents from End Users required under applicable laws, rules, regulations, and orders for their use of Licensee Applications. Licensee agrees to enter into a written agreement with each End User that contains protections and limitations of liability, in each case for the benefit of Garmin, at least as protective as those contained in this Agreement.

5.4. The Parties understand and agree that Garmin is not a consumer reporting agency as defined by the Fair Credit Reporting Act, 15 U.S.C. §1681 et seq. ("FCRA") and that Licensee's use of the API as contemplated hereunder does not constitute a transaction involving a "consumer report" as defined by the FCRA. Licensee agrees that any End User information provided to Licensee by Garmin or through the API has not been collected for credit purposes and will not be used by Licensee or any third party to evaluate or determine any End User's credit worthiness, credit standing, credit capacity, or other characteristics listed in Section 603(d) of the FCRA. Licensee shall not use or permit any third party to use the API, any data transmitted through the API, or any Garmin service to determine End User's eligibility for credit or insurance, employment purposes, or any other purpose set forth in Section 604 of the FCRA.

5.5. Licensee agrees, upon Garmin's request, to promptly provide any clearance documentation related to Section 5.1(j) to support the marketing of any Licensee Application.

5.6. Licensee is solely responsible for complying with any laws, orders, rules, and regulations of: (a) the Federal Communications Commission, FDA, other U.S. regulatory bodies (such as the U.S. Federal Trade Commission and the U.S. Department of Health and Human Services); and (b) any federal, state or local governmental authority and of any other jurisdiction, in each case, applicable to its use of the API or the manufacture, marketing, sale, distribution or other exploitation of any Licensee Application (e.g. MHRA, CFDA, etc.). Licensee agrees it will not seek any regulatory marketing permissions or make any determinations that may result in the API, Garmin Connect or any other Garmin product or service being determined to be regulated products or that may impose any obligations or limitations on Garmin.

5.7. Licensee acknowledges and agrees that (a) use of data and the Garmin Brand Features on any third party application or website in accordance with this Agreement may be subject to additional terms and conditions, including terms and conditions governing Licensee's and/or other third party's use of such application or website, (b) Licensee will comply with such terms and conditions, and (c) Garmin shall have no liability or other obligation under such terms and conditions or otherwise related to such use, except as explicitly set forth herein.

6. GARMIN BRANDING GUIDELINES

6.1. Subject to Licensee's strict compliance with the terms and conditions of this Agreement, Garmin grants Licensee a limited, worldwide, royalty-free, non-assignable, non-transferable, non-sublicensable, revocable, and non-exclusive license to display Garmin's trade name; the Garmin and/or Garmin Connect logos; and/or the Garmin, Garmin Connect, and/or Garmin mountain bike dynamics (including Grit™ and Flow™) word marks (collectively, "Garmin Brand Features") on (a) any content or data that is retrieved from Garmin Connect and displayed (i) in Licensee Applications or (ii) in third party applications or on Licensee's or any third party's website, in each case, using Licensee Applications and (b) Licensee Applications for the purposes of informing End Users that they can (i) retrieve their data from Garmin Connect and/or (ii) upload their data to their Garmin Connect accounts. Licensee must include the Garmin Brand Features in Licensee Applications, in third party applications, and on Licensee's and third party's websites for these limited purposes.

6.2. With respect to Licensee's use of the Garmin Brand Features, Licensee shall at all times adhere to the brand guidelines and appropriate icons set forth on https://developer.garmin.com/brand-guidelines/overview/, which may be revised by Garmin from time to time. With respect to Licensee's use of Garmin mountain bike dynamics (including Grit™ and Flow™) word marks and related data, Licensee shall at all times adhere to the display guidelines set forth on https://developer.garmin.com/brand-guidelines/overview/.

6.3. In using Garmin Brand Features, Licensee will not:

a. use Garmin Brand Features to disparage Garmin or its products or applications or cast Garmin in a negative light in any way;
b. display a Garmin Brand Feature in a manner that is misleading, defamatory, infringing, libelous, disparaging, obscene, or otherwise objectionable to Garmin; or
c. remove, distort, or alter any element of a Garmin Brand Feature (this includes squeezing, stretching, inverting, discoloring, etc.).

6.4. Licensee shall ensure that any display or distribution of Garmin Device Sourced Data to third parties, whether via Licensee Applications or as otherwise permitted, is accompanied by attribution in compliance with Garmin API Brand Guidelines, as updated from time to time and available at https://developer.garmin.com/brand-guidelines. Garmin will have the sole discretion to determine whether Licensee is in compliance with the Garmin API Brand Guidelines.

a. The attribution requirements of Section 6.4 do not apply to Garmin Device Sourced Data accessed exclusively from the Health API and used only within the defense, research, or remote patient monitoring markets, or within other use cases expressly approved in writing by Garmin, provided such data is not displayed or distributed to third parties with Licensee or third-party branding. In cases with such branding, attribution must comply with the Garmin API Brand Guidelines.

6.5. If Garmin determines that Licensee is not in compliance with the branding requirements of this Section, it will provide written notice (such as email) outlining the issue to Licensee. Licensee will have fourteen (14) days from receipt of the written notice to remedy the non-compliance. If not resolved within that period to Garmin's satisfaction, Garmin may reduce the quantity and/or content of Garmin Device Sourced Data supplied to Licensee. If the non-compliance persists for an additional fourteen (14) days, Garmin may suspend Licensee's access to Garmin Device Sourced Data and/or terminate this Agreement.

6.6. Licensee shall provide Garmin with no less than thirty (30) calendar days' prior written notice of any planned introduction of new content formats, user interfaces, or display mechanisms that incorporate Garmin Brand Features subject to Section 6.3 or display Garmin Device Sourced Data subject to the attribution requirements of Section 6.5. Such notice must be sent to connect-support@developer.garmin.com and include representative samples or mockups and a description of how the proposed use complies with applicable branding and attribution requirements.

7. LICENSEE TRADE NAME AND LOGO LICENSE

7.1. Licensee grants Garmin a personal, worldwide, royalty-free, non-assignable, non-transferable, non-sublicensable, irrevocable, and non-exclusive license to display Licensee's trade name and logo ("Licensee Brand Features") on Garmin's website to identify Licensee as a Garmin strategic collaborator related to the API implementation, including in the firmware of End Users' Garmin devices for purposes of identifying Licensee as the strategic collaborator that enabled the transfer of End User Data to that End User's Garmin Connect account.

7.2. In using Licensee Brand Features, Garmin will not:

a. use Licensee Brand Features to disparage Licensee or its products or applications or cast Licensee in a negative light in any way;
b. display a Licensee Brand Feature in a manner that is misleading, defamatory, infringing, libelous, disparaging, obscene, or otherwise objectionable to Licensee; or
c. remove, distort, or alter any element of a Licensee Brand Feature (this includes squeezing, stretching, inverting, discoloring, etc.).

8. CONFIDENTIALITY

8.1. The terms of this Agreement, the API, License Key, Deliverables, and any related information provided to Licensee by Garmin are proprietary and confidential information of Garmin and shall constitute "Garmin Confidential Information" under this Agreement. "Garmin Confidential Information" also includes any other non-public information (including non-public third-party information) that Licensee learns in connection with this Agreement or Licensee's use of any part of the API, including any non-public information related to Garmin's products, designs, research, development, know-how, business, finances, or personnel.

8.2. Licensee agrees to protect Garmin Confidential Information using at least the same degree of care that it uses to protect its own confidential information of similar importance, but no less than a reasonable degree of care. Licensee agrees to use Garmin Confidential Information solely for the purpose of exercising its rights and performing its obligations under this Agreement and agrees not to use Garmin Confidential Information for any other purpose, or for its own or any third party's benefit. Except as otherwise agreed to in writing by Garmin, Licensee further agrees not to disclose or disseminate Garmin Confidential Information to anyone, or to discuss anything about the Garmin Confidential Information with anyone, other than those of Licensee's employees and contractors, in each case, who have a need to know and who are bound by written obligations of confidentiality as least as restrictive as those set forth in this Section 8. Licensee shall be responsible for any breach by any such employee or contractor of this Section 8. Notwithstanding the foregoing, Licensee may disclose Garmin Confidential Information to the extent required by judicial or other governmental order, provided Licensee shall give Garmin written notice within a reasonable time prior to such disclosure, shall reasonably assist Garmin in obtaining a protective order or equivalent order governing the information disclosure, shall comply with any applicable protective order or equivalent order governing the information disclosure, and shall disclose only the Garmin Confidential Information required by such judicial or other governmental order.

8.3. Garmin works with many application and software developers, and some of their products may be similar to or compete with Licensee's products and applications, including Licensee Applications. Garmin may also be developing its own similar or competing applications and products or may decide to do so in the future. To avoid potential misunderstandings, Garmin cannot agree to, and expressly disclaims, any confidentiality obligations or use restrictions, express or implied, with respect to any information that Licensee may provide in connection with this Agreement, including information about Licensee's products and applications, including Licensee Applications (such disclosures will be referred to as "Licensee Disclosures"). Licensee agrees that any such Licensee Disclosures will be non-confidential. Garmin will be free to use and disclose any Licensee Disclosures on an unrestricted basis without notifying or compensating Licensee. Licensee releases Garmin from all liability and obligations that may arise from the receipt, review, use, or disclosure of any portion of any Licensee Disclosures. Any physical materials Licensee submits to Garmin will become Garmin property, and Garmin will have no obligation to return those materials to Licensee or to certify their destruction.

8.4. Licensee will not issue any press release, make any other public statements regarding Garmin, this Agreement, or the subject matter hereof, or otherwise misrepresent its relationship with Garmin without Garmin's express prior written approval. Licensee shall not state or imply that Garmin endorses, certifies, sponsors, approves, or recommends Licensee, any Licensee Application, or any product or service offered by Licensee, except as expressly authorized by Garmin in writing.

9. TERM AND TERMINATION

9.1. The term of this Agreement commences on the Effective Date and will continue in effect until terminated as set forth below.

9.2. Garmin may terminate this Agreement at any time by providing Licensee with thirty (30) days' prior written notice.

9.3. Garmin may terminate this Agreement or revoke any License Key if Licensee has no usage of the API for a continuous period of six (6) months or longer. Following such revocation, Garmin may require Licensee to submit a new application and obtain a new License Key before accessing or using the API.

9.4. Intentionally Omitted.

9.5. This Agreement will terminate immediately and automatically, without any notice by either Party, if Licensee violates any of the terms and conditions of this Agreement. In such case, Garmin may immediately revoke any License Keys and terminate access to any APIs or other services provided by Garmin to Licensee under this Agreement.

9.6. Upon termination of this Agreement for any reason, all licenses and rights granted to Licensee under this Agreement will also terminate, and Licensee must cease using, destroy, and permanently erase from all devices and systems, directly or indirectly controlled by Licensee, all copies of the API and Garmin Brand Features. Termination will not limit any of Garmin's rights or remedies at law or in equity. Upon termination of this Agreement, all other rights granted to Licensee under this Agreement will also terminate. Each Party's rights and obligations under Sections 2, 4.3-4.7, 5.2-5.6, 7, 8, 9.6, 10, 11, 12, 13, 14, 15, 16.1, 16.7, and 16.11-16.13 shall survive termination of this Agreement.

10. FEES AND PAYMENTS

10.1. Garmin may charge fees for access to or use of any API, and such fees may vary depending on factors determined by Garmin, such as the API used, the volume of End Users, request volume, data volume, functionality enabled, or other usage, technical, business, or program criteria.

11. DISCLAIMER OF WARRANTIES

11.1. Licensee's use of the API is at its own discretion and risk, and Licensee will solely be responsible for any damage that results from the use of the API, including any damage to Licensee's or its End Users' computer systems or devices or any loss of data.

11.2. LICENSEE EXPRESSLY ACKNOWLEDGES AND AGREES THAT THE API AND GARMIN BRAND FEATURES ARE USED AT ITS SOLE RISK. THE API AND GARMIN BRAND FEATURES ARE PROVIDED "AS IS", WITH ALL FAULTS AND WITHOUT WARRANTY OF ANY KIND, AND GARMIN AND ITS LICENSORS HEREBY DISCLAIM ALL WARRANTIES AND CONDITIONS WITH RESPECT TO THE API AND GARMIN BRAND

FEATURES, EITHER EXPRESS, IMPLIED, OR STATUTORY, INCLUDING THE IMPLIED WARRANTIES AND CONDITIONS OF MERCHANTABILITY, SATISFACTORY QUALITY, FITNESS FOR A PARTICULAR PURPOSE, ACCURACY, TIMELINESS, AND NON-INFRINGEMENT OF THIRD PARTY RIGHTS, AND ALL WARRANTIES ARISING FROM COURSE OF DEALING, USAGE, OR TRADE PRACTICE. GARMIN AND ITS LICENSORS DO NOT WARRANT THAT THE API OR GARMIN BRAND FEATURES, OR ANY PRODUCTS OR RESULTS OF THE USE THEREOF, WILL MEET LICENSEE'S OR ANY OTHER PERSON'S REQUIREMENTS; OPERATE WITHOUT INTERRUPTION; ACHIEVE ANY INTENDED RESULT; BE COMPATIBLE OR WORK WITH ANY OF GARMIN'S, ITS LICENSEE'S, OR ANY THIRD PARTY'S SOFTWARE, SYSTEM, OR OTHER PRODUCTS OR SERVICES; OR BE SECURE, ACCURATE, COMPLETE, FREE OF HARMFUL CODE, OR ERROR-FREE. NO ORAL OR WRITTEN INFORMATION OR ADVICE GIVEN BY GARMIN OR A GARMIN AUTHORIZED REPRESENTATIVE WILL CREATE A WARRANTY ON BEHALF OF GARMIN.

12. LIMITATION OF LIABILITY

TO THE FULLEST EXTENT PERMITTED UNDER APPLICABLE LAW, GARMIN SHALL NOT BE LIABLE TO LICENSEE IN RESPECT OF ANY CLAIM, DEMAND, OR ACTION, IRRESPECTIVE OF THE NATURE OF THE CAUSE OF THE CLAIM, DEMAND, OR ACTION, ALLEGING ANY LOSS, INJURY, OR DAMAGES, DIRECT OR INDIRECT, WHICH MAY RESULT HEREUNDER OR FROM ANY ACT OR OMISSION BY GARMIN OR ANY OTHER PARTY RELATED TO THIS AGREEMENT, INCLUDING FROM THE USE OR POSSESSION OF THE API OR END USER DATA, OR FOR ANY LOSS OF PROFIT, REVENUE, CONTRACTS, OR SAVINGS, OR ANY OTHER DIRECT, INDIRECT, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES (INCLUDING LOST OR CORRUPTED DATA, COMPUTER FAILURE OR MALFUNCTION OR INTERRUPTION OF BUSINESS) ARISING OUT OF LICENSEE'S USE OF OR INABILITY TO USE THE API, ANY DEFECT IN THE API, OR OTHERWISE UNDER THIS AGREEMENT, INCLUDING A BREACH HEREOF, WHETHER IN AN ACTION IN CONTRACT, TORT, STRICT LIABILITY, OR OTHER LEGAL OR EQUITABLE THEORY, EVEN IF GARMIN HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES OR SUCH DAMAGES WERE FORESEEABLE. TO THE FULLEST EXTENT PERMITTED UNDER APPLICABLE LAW, GARMIN'S TOTAL AGGREGATE LIABILITY WITH RESPECT TO ANY CLAIM OR ACTION ARISING UNDER THIS AGREEMENT, OR OTHERWISE WITH RESPECT TO THE API, SHALL NOT EXCEED $1.00.

LICENSEE SHALL NOT BE LIABLE TO GARMIN FOR ANY LOSS OF PROFIT, REVENUE, CONTRACTS, OR SAVINGS, OR ANY OTHER INDIRECT, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES.

SOME STATES (INCLUDING NEW JERSEY), TERRITORIES, AND COUNTRIES DO NOT ALLOW CERTAIN LIABILITY EXCLUSIONS OR DAMAGES LIMITATIONS; PROVIDED, HOWEVER, THAT, IN THE EVENT ANY SUCH LIABILITY EXCLUSION AND/OR DAMAGES LIMITATION IS DECLARED INVALID OR UNENFORCEABLE, SUCH LIABILITY EXCLUSION AND/OR DAMAGES SHALL BE ENFORCED TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW.

13. RELEASE AND WAIVER

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, LICENSEE HEREBY RELEASES AND WAIVES ALL CLAIMS AGAINST GARMIN AND ITS OFFICERS, DIRECTORS, MANAGERS, PARTNERS, MEMBERS, SHAREHOLDERS, AGENTS, LICENSORS, CO-BRANDERS, REPRESENTATIVES, AND EMPLOYEES FROM ANY AND ALL LIABILITY FOR CLAIMS, DAMAGES (INCLUDING ACTUAL AND/OR CONSEQUENTIAL), COSTS, AND EXPENSES (INCLUDING LITIGATION COSTS AND ATTORNEYS' FEES) OF EVERY KIND AND NATURE, ARISING FROM OR IN ANY WAY RELATED TO THIS AGREEMENT OR LICENSEE'S USE OF THE API AND/OR GARMIN BRAND FEATURES.

14. LICENSEE WARRANTIES, HOLD HARMLESS, AND INDEMNITY

14.1. Licensee represents and warrants that (a) it will maintain, throughout the term of this Agreement, all required rights and licenses related to the Licensee Applications, and the Licensee Applications shall not infringe or otherwise violate any third party rights, including third party intellectual property rights; and (b) its uses of the API and data shall comply with all applicable foreign, federal, state, and local laws, rules, and regulations.

14.2. To the maximum extent permitted by applicable law, Licensee agrees to defend, hold harmless, and indemnify Garmin and its officers, directors, managers, partners, members, shareholders, agents, licensors, co-branders, representatives, and employees from and against any third party claim, loss, liability, judgment, demand, penalty (including any administrative penalty), settlement, investigation, cost, and expense (each, a "Claim") arising from or in any way related to (a) Licensee's breach of this Agreement, (b) a Personal Data Breach or Claim caused by any violation of applicable law, act, omission, or negligence of Licensee, or (c) Licensee's use of the API in a manner

that is inconsistent with the purpose set forth in Section 1 of this Agreement, or (d) Claims that a Licensee Application infringes the intellectual property rights of a third party. Garmin shall use good faith efforts to provide Licensee with written notice of such Claim. Garmin reserves the right, in Garmin's sole discretion, to assume the exclusive defense, control, and settlement of any Claim with legal counsel of Garmin's choice at the expense of Licensee, and, in such case, Licensee agrees to fully cooperate with Garmin in the defense of any such Claim. Licensee may not enter into any third-party agreement that would, in any manner whatsoever, constitute an admission of fault by Garmin or bind Garmin in any manner.

15. DATA PROTECTION AND PRIVACY

15.1. Through the API, Licensee may collect End User Data that constitutes Personal Data ("End User Personal Data") or receive End User Personal Data from Garmin.

15.2. The Parties are each separately responsible for, and shall each comply with, their respective obligations set forth in this Agreement and with their respective obligations contained in Applicable Data Protection Laws. For avoidance of doubt, Garmin is an independent "controller", not Licensee's "processor" (as each term is defined by the European Union General Data Protection Regulation, if applicable).

15.3. Each Party shall take actions to ensure the appropriate security of all End User Personal Data in its possession, custody, or control, including actions to protect against unauthorized or unlawful Processing and against accidental loss, destruction, or damage, using appropriate technical and organizational measures and in accordance with obligations under Applicable Data Protection Laws.

15.4. Licensee is responsible for complying with Applicable Data Protection Laws related to Licensee's Processing of End User Personal Data collected by Licensee through the API. Before collecting any End User Personal Data through the API, Licensee will (a) provide conspicuous notice in compliance with Applicable Data Protection Laws to the End User of its privacy practices applicable to Licensee Applications (a "Privacy Policy") and (b) confirm that any consent required by Applicable Data Protection Laws has been obtained from the End User, including any consent necessary to ensure that any disclosure of End User Personal Data hereunder is not deemed a sale as defined by Applicable Data Protection Law or that Licensee otherwise has a lawful basis for Processing, and provide the End User with the ability to easily withdraw such consent; (c) only Process any End User Personal Data in accordance with applicable notices and consents; and (d) respond in accordance with Applicable Data Protection Laws to End User requests to exercise their data subject rights, including their rights, where applicable, to access, rectify, erase, object to, restrict the Processing of, or export End User Personal Data that Licensee has collected via the API.

15.5. Licensee will not sell End User Personal Data received via the API without the End User's lawful consent.

15.6. Unless legally permitted to do so, Licensee will not use the API to make any modifications to any End User Personal Data, other than to modify the formatting of such End User Personal Data in order to display it in a manner appropriate for the pertinent Licensee Applications.

15.7. At Garmin's reasonable request, Licensee shall make available information necessary for Garmin to determine Licensee's compliance with its obligations under this Section 15, including but not limited to the data protection requirements of 15.4 and the artificial intelligence transparency requirements of Section 15.10. Licensee shall promptly notify Garmin of any investigation by a data protection regulator or similar authority relating to Licensee's use of the API or to End User Personal Data, and, without prejudice to Garmin's indemnification rights, permit Garmin to cooperate with Licensee in responding to any such investigation if Garmin deems it appropriate for Garmin to participate.

15.8. Licensee is responsible for properly implementing Garmin's system for authorizing access to End User Personal Data via the API. Licensee shall not request or otherwise attempt to obtain the End User's Garmin login credentials, implement an alternative authorization system that is not specifically approved by Garmin in writing, or attempt to circumvent Garmin's access controls or other security measures in any manner.

15.9. To the extent that a Party transfers End User Personal Data to the other Party in a country or territory that has not been deemed adequate under Applicable Data Protection Laws (each a "Third Country"), the Parties shall cooperate as necessary to comply with any requirements for such transfers. If such transfer originated in the European Economic Area ("EEA"), Switzerland, the United Kingdom, or any other jurisdiction that authorizes transfers to Third Countries based on the Standard Contractual Clauses, the Standard Contractual Clauses, together with Annex A

attached hereto, are incorporated by reference and apply with respect to such transfer of End User Personal Data. Where applicable, Garmin and Licensee will each comply with their respective obligations under the Standard Contractual Clauses. The Parties agree that as and when the Standard Contractual Clauses are updated, replaced, or superseded, such updated or new model contractual clauses will automatically apply and be incorporated into this Agreement and govern the transfers to Third Countries of Personal Data between Garmin and Licensee.

15.10. Licensee's Privacy Policy shall include a conspicuous artificial intelligence transparency statement (the "AI Transparency Statement") if End User Data will be processed by artificial intelligence systems. The AI Transparency Statement shall:

a. Clearly inform End Users of the nature and purpose of any processing by artificial intelligence systems; and
b. Comply with any legal or regulatory obligations that apply to Licensee's use of End User Data with artificial intelligence systems, including mechanisms for (i) obtaining explicit consent from each End User before initiating any processing of End User Data; (ii) allowing End Users to withdraw such consent easily at any time; and (iii) updating to reflect changes in applicable laws, regulations, or Garmin policies.

15.11. Except as expressly authorized in writing by Garmin, Licensee shall not, and shall not permit any third party to:
a. use any Garmin Device Sourced Data, Garmin Confidential Information, Garmin Intellectual Property, or any data derived from them to train, test, evaluate, benchmark, improve, or otherwise develop any AI model or AI platform, whether the data is identified, deidentified, anonymized, aggregated, transformed, or combined with other data;
b. include any Garmin Device Sourced Data, Garmin Confidential Information, Garmin Intellectual Property, or any outputs derived from them in any training, evaluation, or benchmark dataset;
c. create or maintain any AI model, AI system or AI generated knowledge base using Garmin Device Sourced Data or information derived from Garmin Device Sourced Data;
d. Use Garmin Device Sourced Data to develop, improve, support, or offer any product, service, or feature that competes with Garmin products, services, or platforms; or
e. retain, store, archive, cache, or preserve Garmin Device Sourced Data in any manner that enables future AI training, fine-tuning, model improvement, model evaluation, or AI development.

Any prompts, responses, conversation logs, summaries, recommendations, insights, or other interaction data that contain, reference, are derived from, or are generated using Garmin Device Sourced Data shall be deemed Garmin Device Sourced Data for purposes of this Section and may not be used for AI training or model improvement.

16. GENERAL

16.1. The API may be subject to U.S. export control laws, including the U.S. Export Administration Act and its associated regulations. Licensee shall not, directly or indirectly, export, re-export or release the API to, or make the API accessible from, any jurisdiction or country to which export, re-export or release is prohibited by law, rule or regulation. Licensee shall comply with all applicable federal laws, regulations and rules, and complete all required undertakings (including obtaining any necessary export license or other governmental approval), prior to exporting, re-exporting, releasing, or otherwise making the API available outside the U.S.

16.2. Licensee certifies and represents that, in the performance of this Agreement, it will comply with all applicable laws, regulations, rules, and orders.

16.3. Neither this Agreement, nor any terms and conditions contained herein, shall be construed as creating a partnership, joint venture, employment, or agency relationship or as granting a franchise.

16.4. If any provision of this Agreement shall be held by a court or arbitrator of competent jurisdiction to be illegal, invalid, or unenforceable, such provision will be enforced to the maximum extent permitted by applicable law, and the remaining provisions of this Agreement shall remain in full force and effect.

16.5. No waiver of any breach of any provision of this Agreement shall constitute a waiver of any prior, concurrent, or subsequent breach of the same or any other provisions hereof, and no waiver shall be effective unless made in writing and signed by an authorized representative of the waiving Party.

16.6. Upon acceptance of this Agreement by Licensee, this Agreement shall constitute the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior and contemporaneous agreements

of every kind and nature between the Parties regarding the subject matter hereof. Garmin may amend this Agreement from time to time, and any such amended Agreement will be made available to Licensee. Licensee's continued use of the API or Garmin Brand Features after such amended Agreement is made available to Licensee signifies Licensee's agreement to and acceptance of this Agreement, as amended. Except pursuant to the preceding three sentences, this Agreement may only be amended by mutual written agreement of the Parties.

16.7. If the API is being licensed by or on behalf of the United States government or any other entity seeking or applying rights similar to those customarily claimed by the United States government, then (a) for acquisitions conducted by the Department of Defense, the API and Garmin Brand Features are licensed with "Limited Rights" in accordance with the rights set forth at DFARS 252.227-7013(b)(3), TECHNICAL DATA-NONCOMMERCIAL ITEMS, and (b) for civilian agency acquisitions, the API and Garmin Brand Features are licensed in accordance with the rights set forth at FAR 52.227-14(g)(1), RIGHTS IN DATA-GENERAL (*Protection of limited rights data and computer software*).

16.8. Licensee shall not have any authority to assume or create any obligation for or on behalf of Garmin, express or implied, and Licensee shall not attempt to bind Garmin to any contract or agreement.

16.9. Unless specified otherwise in this Agreement, any communications or notices to Garmin in connection with this Agreement must be in writing and sent to the following address: Garmin International, Inc., Attn: Legal Department, 1200 East 151st Street, Olathe, Kansas 66062. All such communications and notices must be delivered either in person, by certified or registered mail, return receipt requested and postage prepaid, or by nationally recognized overnight courier service, and are deemed given upon receipt by Garmin. Notwithstanding the foregoing, Licensee hereby consents to receiving electronic notices and other communications from Garmin, including notices about applicable fees and charges, transactional information, and other information concerning or related to this Agreement or the API. Licensee agrees that any notices, agreements, disclosures, or other communications that Garmin sends to Licensee electronically will satisfy any legal communication and notice requirements set forth herein or pursuant to applicable law, including that such communications be in writing.

16.10. This Agreement, including any rights and obligations hereunder, may not be assigned or transferred by Licensee, whether by merger, operation of law, or otherwise, and any action or conduct in violation of the foregoing will be void and without effect. Garmin expressly reserves the right to assign this Agreement.

16.11. Except as otherwise specifically agreed to in writing by Licensee and Garmin, any controversy or claim arising out of or relating to this Agreement or use of the API and/or Garmin Brand Features, where such Licensee is incorporated, organized, or domiciled in the United States, which is not resolved by the Parties, shall be adjudicated by any court of competent jurisdiction in the United States. For a Licensee incorporated, organized, or domiciled outside the United States, any controversy or claim arising out of or relating to this Agreement or use of the API and/or Garmin Brand Features shall be determined by arbitration in accordance with the International Arbitration Rules of the International Centre for Dispute Resolution. The place of arbitration shall be New York, New York, USA. The language of the arbitration shall be English. Notwithstanding this agreement to arbitrate, Licensee agrees that Garmin will be allowed to apply for injunctive remedies (or an equivalent type of urgent legal relief) in any jurisdiction. In any controversy or claim between the Parties arising out of or related to this Agreement or use of the API and/or Garmin Brand Features by Licensee, the prevailing Party will be entitled to recover its reasonable attorneys' fees and costs from the other Party.

16.12. THIS AGREEMENT AND RELATIONSHIP BETWEEN LICENSEE AND GARMIN SHALL BE GOVERNED BY AND CONSTRUED IN ACCORDANCE WITH THE LAWS OF THE STATE OF NEW YORK, USA, WITHOUT REFERENCE TO THE PRINCIPLES OF CONFLICTS OF LAWS.

16.13. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, LICENSEE ACKNOWLEDGES AND AGREES THAT (A) ANY CONTROVERSY OR CLAIM ARISING OUT OF OR RELATING TO THIS AGREEMENT OR USE OF THE API AND/OR GARMIN BRAND FEATURES MAY ONLY BE BROUGHT BY LICENSEE IN AN INDIVIDUAL CAPACITY AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS OR REPRESENTATIVE PROCEEDING, WHETHER IN COURT OR AN ARBITRATION PROCEEDING, AND (B) NO COURT OR ARBITRATOR MAY CONSOLIDATE MORE THAN ONE SUCH CONTROVERSY OR CLAIM OR OTHERWISE PRESIDE OVER ANY FORM OF A REPRESENTATIVE OR CLASS PROCEEDING RELATED TO ANY SUCH CONTROVERSY OR CLAIM.

GARMIN
1200 East 151 Street
Olathe, Kansas 66062
P: 913-440-1280

Annex A – Standard Contractual Clauses

For transfers of End User Personal Data to a Third Country, this Annex specifies certain optional provision for, and completes the information required by, the Standard Contractual Clauses:

1. Optional Clauses and Details of Processing

(a) The optional docking clause in Clause 7 does not apply.
(b) The optional provision in Clause 11(a) regarding the use of an independent dispute resolution body does not apply.
(c) In Clause 17, the governing law shall be the laws of Germany.
(d) In Clause 18(b), any dispute arising from the Standard Contractual Clauses shall be resolved in the courts of Germany.
(e) In Annex I, Part A ("List of Parties") of the Standard Contractual Clauses:
    i. Data Exporter: (a) for End User Personal Data obtained or accessed by Licensee through the API, Garmin International, Inc., acting on behalf of controller, Garmin Würzburg GmbH, is the data exporter of personal data originating from the European Economic Area, United Kingdom, and Switzerland and Garmin International, Inc. is the data exporter of other personal data; or (b) for End User Personal Data obtained or accessed by Garmin through the API, Licensee on behalf of itself or an affiliated controller is the data exporter.
    ii. Data Importer: (a) Licensee is the data importer for End User Personal Data obtained or accessed by Licensee through the API; or (b) Licensee is the data importer for End User Personal Data obtained or accessed by Garmin through the API.
    iii. Contact Details for Garmin: EU Data Protection Officer, euprivacy@garmin.com
    iv. Contact Details for Licensee: Electronic contact information submitted by Licensee to Garmin, as updated from time to time
    v. Data Exporter Role: Controller
    vi. Data Importer Role: Controller
(f) In Annex I, Part B ("Description of Transfer") of the Standard Contractual Clauses:
    i. Categories of data subjects: Users of Licensee's Application
    ii. Categories of personal data: Data exporter may transfer Personal Data to data importer, the extent of which is determined and controlled by the data exporter in its sole discretion, and which may include data elements specified in the applicable Documentation.
    iii. Sensitive data: Depending on the API used, data exporter may transfer data relating to the health of a data subject.
    iv. Frequency of transfer: Continuous basis
    v. Nature of the processing: Collection, recording, organisation, storage, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, or other operations notified to the data subject
    vi. Purpose of the transfer and further processing: To enable the data importer to provide services to the End User via a website or mobile application
    vii. Period for which data will be retained: For duration of the End User maintaining an account with data importer or until End User exercises rights to delete Personal Data, whichever comes first
(g) In Annex I, Part C ("Competent Supervisory Authority") of the Standard Contractual Clauses: Bayerisches Landesamt für Datenschutzaufsicht will be competent supervisory authority in accordance with Clause 13.
(h) In Annex II of the Standard Contractual Clauses: The minimum technical and organizational security measures will be the Minimum Security Requirements, as may be updated or amended by Garmin, from time to time.
(i) Signature and Date: By entering into the Agreement, data importer and data exporter are deemed to have signed these Standard Contractual Clauses, including their Annexes, as of the Effective Date of the Agreement.

2. Additional Safeguards

To ensure the adequate protection of End User Personal Data and the rights and freedoms of data subjects, Garmin and Licensee agree to incorporate the following additional safeguards into the Standard Contractual Clauses: (a) Licensee will ensure that its technical and organizational measures are appropriate and reasonable under Applicable Data Protection Laws and meet or exceed the Minimum Security Requirements, as may be updated or amended by Garmin, from time to time; and (b) Licensee agrees to implement and follow a procedure for responding to requests from law enforcement or other governmental agencies for End User Personal Data, including requests which relate to surveillance, that ensures its compliance with Applicable Data Protection Laws, allows it to meet its obligations under the Standard Contractual Clauses, and provides adequate protection for the rights and freedoms of data subjects.

1200 East 151 Street
Olathe, Kansas 66062
P: 913-440-1280

3. United Kingdom Mandatory Clauses

For End User Personal Data transferred from the United Kingdom ("UK Transfers"), the Standard Contractual Clauses are amended by incorporating into the Agreement by reference the Mandatory Clauses in Part 2 of the template Addendum B.1.0 issued by the United Kingdom's Information Commissioner's Office and laid before the United Kingdom's Parliament in accordance with s119A of the Data Protection Act 2018 on 2 February 2022, as revised from time to time in accordance with Section 18 of those Mandatory Clauses (the "UK Mandatory Clauses"). To the extent of a conflict between the Standard Contractual Clauses (including the additional and optional provisions specified above), and the UK Mandatory Clauses, the UK Mandatory Clauses shall control with respect to UK Transfers.